

May 22, 2026, Civil Law & Motion Tentative Rulings

1. CU0001938 U.S. Bank National Association vs. Joseph A. Miller, DMD, Inc., et al.

Defendant Joseph A. Miller's motion for relief from default/default judgment and for leave to file an answer and cross-complaint is denied.

Legal Standard

Defendant moves for relief from the default and default judgment under Code of Civil Procedure section 473(b). Section 473(b) provides for discretionary relief from a default or default judgment that has been entered due to mistake, surprise, inadvertence, or excusable neglect. Code Civ. Proc. § 473(b). The party seeking relief must bring his or her motion within a reasonable time, not to exceed six months from the date of entry of the default or default judgment. *Ibid.* Also, "[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted...." *Ibid.*

" '[T]he provisions of section 473 of the Code of Civil Procedure are to be liberally construed and sound policy favors the determination of actions on their merits.' " *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 256. "[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233. "Where the mistake is excusable and the party seeking relief has been diligent, courts have often granted relief pursuant to the discretionary relief provision of section 473 if no prejudice to the opposing party will ensue. In such cases, the law 'looks with [particular] disfavor on a party who, regardless of the merits of his cause, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.'" *Zamora*, 28 Cal. 4th at 256 (internal citations omitted).

In determining whether the default was entered against the defendant as a result of his or her reasonable mistake, inadvertence, surprise or excusable neglect, the court must look at whether the mistake or neglect was the type of error that a reasonably prudent person under similar circumstances might have made. *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 276. However, the court will not grant relief if the defendant's default was taken as a result of mere carelessness or other inexcusable neglect. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62.

In addition, the moving party must show that they were diligent in seeking relief from the default, and that they sought relief within a reasonable time after they learned of the default:

This court has held that what a 'reasonable time' is in any case depends primarily on the facts and circumstances of each individual case, but definitively requires a showing of diligence in making the motion after the discovery of the default. In other words, the moving party must not only make a sufficient showing of 'mistake, inadvertence, surprise, or neglect' in order to excuse the original default, but must also show diligence in filing its application under section 473 after learning about the default. If there is a delay in filing for relief under section

473, the reason for the delay must be substantial and must justify or excuse the delay.

Stafford v. Mach (1998) 64 Cal.App.4th 1174, 1181 (citations omitted).

Failure to explain a substantial delay in seeking relief warrants denial of the motion to set aside. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1144-1145. While the trial court has discretion as to whether to grant or deny relief, there must be some explanation for the delay in order to support an order granting relief. *Id.* at 1145. Indeed, “[n]umerous courts have found no abuse of discretion in granting relief where the section 473 motions at issue were filed seven to 10 weeks after entry of judgment.” *Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 34; see *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1144-1145. (abuse of discretion to grant relief from dismissal where moving party failed to explain the seven-week delay between learning of the dismissal and seeking relief). “A delay is unreasonable as a matter of law ... when it exceeds three months and there is no evidence to explain the delay.” *Minick*, 3 Cal.App.5th at 34; *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1422 (citations omitted) (affirming trial court’s denial of motion to set aside judgment where there was an unexplained delay of more than three months between entry of judgment and filing of motion to set aside).

Analysis

As a preliminary matter, Defendant’s motion to set aside is procedurally defective. Under section 473(b), “[a]pplication for this relief *shall* be accompanied by a copy of the answer or other pleading proposed to be filed therein, *otherwise the application shall not be granted....*” Code Civ. Proc. § 473(b) (italics added). The language of the statute is mandatory. Here, Defendant indicates he has filed a proposed answer attached to his counsel’s declaration but has failed to submit the same. As such, relief is inappropriate on this ground alone.

Secondly, Defendant has not explained why he delayed so long before seeking to set aside the default/default judgment or how he has been reasonably diligent with respect to seeking relief as to the same. Defendant was clearly aware that he had been sued in May 2025. Defendant was given notice of non-sufficient funds in connection with his answer on July 25, 2025, and was further advised that his answer was stricken on September 5, 2025. Defendant was specifically served with a September 8, 2025, request for entry of default. Default was entered against Defendant on September 8, 2025, and judgment by default entered on December 12, 2025. Defendant did not file his motion to set aside the default until March 4, 2026. Defendant fails to address when or how he learned of the default entered against him (although he was presumably on notice of the possibility as of September 2025). Moreover, Defendant has not offered, as required, any credible explanation for the delay of almost six months between entry of the default in September 2025 and filing the March 2026, motion to set aside (or the delay of almost three months between entry of default judgment in December 2025 and filing of the motion). On these facts, Defendant has not demonstrated a substantial justification or excuse for the unreasonable delay.

Lastly, Defendant has failed to meet his burden of showing that he is entitled to relief due to mistake, surprise, inadvertence, or excusable neglect. Defendant declares he did not have personal counsel to represent him, he filed his answer without knowing he was required to pay a filing fee, and he was not advised his answer would be stricken and his default entered if he did

not do so. Miller Decl., ¶¶ 2-4. Defendant argues “a lay person would have no knowledge of the procedural steps that were required of him....” Mot., 2:17-18. The Court disagrees.

A self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247.

In addition, Defendant was mailed a notice of non-sufficient funds on July 25, 2025, was separately served with a September 5, 2025 order striking the Answer due to non-payment of funds, and was separately served with a September 8, 2025 request for entry of default. Default was subsequently entered on September 8, 2025. This notwithstanding, Defendant did nothing to address the situation until engaging counsel at some unknown time who then filed a request for relief in March 2026. On this record, there has been no credible showing of excusable mistake, surprise, inadvertence or neglect.

In summary, the Court denies the motion to set aside the default and default judgment.

2. CU0002209 Julli Conde vs. City of Nevada, et al.

The motion of Defendant City of Nevada City (“City”) to compel responses to discovery, deem requests for admission admitted, and for monetary sanctions is withdrawn from calendar as moot in light of Plaintiff’s dismissal of the City on May 13, 2026.

3. CU0002477 Blanche Sherr vs. Cascade Living Group

Defendants’ Motion to Compel Arbitration

Defendants Cascade Living Group–Grass Valley, LLC’s and Cascade Living Group Management, LLC’s motion to compel arbitration and request to stay action is denied.

Legal Standard

California law strongly favors arbitration finding it a speedy and relatively inexpensive manner of dispute resolution. *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97. A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. Code Civ. Proc. § 1291.2. The court must grant the petition to compel arbitration unless it finds: the right to compel arbitration has been waived by the moving party; grounds exist for the revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. Code Civ. Proc. § 1281.2.

Private arbitration is a matter of agreement between the parties and is accordingly governed by contract law. *Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 313. Under both federal and state law, a threshold question for any petition to compel arbitration is whether there exists an agreement to arbitrate. *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396. Once the party seeking arbitration has met its burden proving the existence of a valid arbitration agreement, the